



Incubeta - Datisan

MN-05043

Phase 1 Determination

Acquisition may be put into effect

8 September 2026

1. Determination and statement of reasons

Notified acquisition	Incubeta Australia Pty Limited (Incubeta) proposes to acquire the entire issued share capital of Datisan Pty Ltd (Datisan) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	Incubeta is part of the Incubeta Group, an international digital marketing group. In Australia, Incubeta supplies Google Marketing Platform and Google Analytics licence resale. Incubeta also supplies professional consulting services related to implementing and operating advertising and marketing platforms. Incubeta is a subsidiary of entities controlled by Carlyle Group Inc., a global alternative asset manager. Datisan is a Brisbane-based authorised reseller of Google Marketing Platform and Google Cloud Platform products and a provider of related professional marketing technology services. Datisan is part of XPON Technologies Group Limited, an Australian marketing technology group.
Overlap and relationship between the Parties	Incubeta and Datisan both resell and provide programmatic media-buying platforms within the Google Marketing Platform suite together with associated ad-operations support. Both parties also supply Google Analytics services.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC finds that post-Acquisition, the merged firm would continue to face competition from other resellers of Google Platform products and related services.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to

	the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**